ORDINANCE 292

AN ORDINANCE ADOPTING A FIRE PREVENTION CODE PRESCRIBING REGULATIONS GOVERNING CONDITIONS HAZARDOUS TO LIFE AND PROPERTY FROM FIRE OR EXPLOSION .

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SECTION 1. ADOPTION OF A FIRE PREVENTION CODE.

There is hereby adopted by the governing body of the Municipality, for the purpose of prescribing regulations governing conditions hazardous to life and property from fire or explosion, that certain code known as the Fire Prevention Code, Abbreviated Edition, as recommended by the National Board of Fire Underwriters, being particularly the 1948 edition thereof, and the whole thereof, save and except such portions as are hereinafter deleted or amended. Not less than three (3) copies of this code have been and are now on file in the office of the Clerk of the Municipality for public record and examination, and the same are hereby adopted and incorporated as fully as if set forth at length within the body of this adopting ordinance, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the corporate limits of the Municipality.

SECTION 2. ENFORCEMENT.

The code hereby adopted shall be enforced by the Chief of the Fire Department of the Municipality.

SECTION 3. DEFINITION.

Wherever the word "Municipality" is used in the code hereby adopted or within the body of this ordinance, it shall be held to mean the City of Rector, Arkansas.

SECTION 4. ESTABLISHMENT OF DISTRICTS IN WHICH STORAGE OF FLAMABLE LIQUIDS IN OUTSIDE ABOVE GROUND TANKS, BULK STORAGE OF LIQUIFIED PEROLEUM GASES AND STORAGE OF EXPLOSIVES AND BLASTING AGENTS IS TO BE RESTRICTED.

The limits referred to in section 73 of the code hereby adopted in which storage of flammable liquids in outside above ground tanks is prohibited, the limits referred to in section 103 of the code hereby adopted, in which bulk storage of liquefied petroleum gas is restricted, and the limits referred to in section 53 b of the code hereby adopted, in which storage of explosives and blasting agents is prohibited, are hereby established as follows:

a. The area designated on the "Official Zoning Map" of the Municipality as the Central Business District.

b. Within 1500 feet of any dwelling structure in any built up area within the corporate limits of the Municipality;

with the exception of outside above ground tanks for the storag of flammable liquids or for the bulk storage of liquefied petroleum gases having been located in such designated areas prior to the adoption date of this ordinance ; provided,however, that the Fire Chief as hereinafter set forth in Section 5 of this Ordinance.

SECTION 5. MODIFICATIONS.

The Chief of the Fire Department shall have power to modify any of the provisions of the code hereby adopted upon application in writing by the owner or lessee, or his duly authorized agent, when there are practical difficulties in the way of carrying out the strict letter of the code, provided that the spirit of the code shall be observed, public safety secured, and substantial justice done. the particulars of such modfcation when granted or allowed and the decision of the Chief of the Fire department thereon shall be entered upon the records of the department and a signed copy shall be furnished the applicant.

SECTION 6. APPEALS.

Whenever the Chief of the Fire Department shall approve an application or refuse to grant a permit applied for, or when it is claimed that the provisions of the code do not apply or that the true intent and meaning of the code have been misconstrued or wrongly interperted, the applicant may appeal from the decision of the Chief of the Fire Department to the governing body of the Municipality within 30 days from the date of the decision appealed.

SECTION 7. PENALTIES.

a. Any person who shall violate any of the provisions of the code hereby adopted or fail to coply therewith, or who shall violate or fail to comply with any order made thereunder, or who shall build a violation of any detailed statement of specifications or plans submitted and approved thereunder, or any certificate or permit issued thereunder, and from which no appeal has been taken, or who shall fail to comply with such an order as affirmed or modified by the governing body of the Municipality or by court of competent jurisdiction, within the time fixed herein, shall severally for each and every such violation and noncompliance respectively, be guilty of a misdemeanor, punishable by a fine of not less than $10/00 nor more than $100.00 or by imprisonment for not less than 3 days nor more than 30 days or by both such fine and imprisonment. The imposition of one penalty for any violation shall not excuse the violation or permit it to continue; and all such persons shall be required to correct or remedy such violations or defects within a feasonable time; and when not otherwise specified, each ten days that prohibited conditions are maintained shall constitute a seperate offense.

b. The application of the above penalty shall not be held to prevent the enforced removal of prohibited conditions.

SECTION 8. REPEAL OF CONFLICTING ORDINANCES.

All former ordinances or parts thereof conflicting or inconsistent with the provisions of this ordinance are hereby repealed.

SECTION 9. VALIDITY.

The governing body of the Municipality hereby declares that should any section, paragraph, sentence, or word of this ordinance or of the code hereby adopted by declared for any reason to be invalid, it is the intent of the governing body of the Municipality that it would have passed all other portions of this ordinance independent of the elimination herefrom of any such portion as may be declared invalid.

SECTION 10. DATE OF EFFECT.

This ordinance shall take effect 60 days after its approval.

Signed _____
Mayor

Date Passed: November 21-1968

Attest: Bertha Simmons
Clerk

(SEAL)